But it is worth noting, first, that this was a list of errors which the NSA itself logged and reported—hardly the sign of a systematic cover-up or intentional abuse. Second, as a share of total e-mail traffic, measured in many billions, the number is vanishingly small. At other points the FISA court has also complained about the scope of the NSA's collection of meta-data, about the way in which it is accessed, and about the level of authorisation sought. Yet on reading the (mind-numbingly long) rulings from the court, it is clear that the system is broadly working. The NSA makes mistakes. It reports them. The court finds flaws in the agency's conduct and slaps it down (in sometimes stinging language).[8] Procedures change. Politicians react. Snowdenistas may not like the system, but even before their disclosures, its checks and balances were operating broadly as intended.

If the result of the Snowden revelations is to show that intelligence agencies and their employees make mistakes, or that they operate up to the limits of their political, judicial and regulatory constraints, and sometimes clash with the lawmakers and judges who regulate them, then that is an underwhelming benefit given the damage caused. Yes, the system could be better. I strongly support the introduction of a 'public defender' in the FISA court (as, incidentally, does the NSA).[9] Such a person would be security cleared to see secret information, but would also have the standing to argue against the intelligence agencies' requests for warrants. Under the current system, the agencies make their case to the judges—but with nobody to challenge them head on. (President Obama has suggested lay advocates take part in deliberating 'novel' cases). The appointment of FISA judges—currently by the chief justice alone—could be the result of a broader process.

The NSA regards foreign citizens' communications as fair game—which happens to be the position under